Docusign Envelope ID: FDB88268-0939-87AA-8156-10568B71DDFF

**CITY OF FAIRFIELD**

**RESOLUTION NO. 2026-158**

**APPROVING AN ORDINANCE AND ORDERING THAT A MEASURE BE SUBMITTED TO THE VOTERS OF THE CITY AT THE GENERAL MUNICIPAL ELECTION TO BE HELD ON NOVEMBER 3, 2026, TO CHANGE THE OFFICE OF CITY CLERK TO AN APPOINTIVE POSITION**

**WHEREAS,** the model of governance under Government Code Section 36501 requires general law cities to each have a city council, city clerk, city treasurer, chief of police, fire chief, and any subordinate officers or employees provided by law; and

**WHEREAS,** a city clerk oversees vital municipal functions pursuant to Government Code section 40801 et seq., such as maintaining official records, administering oaths and affirmations, taking and certifying affidavits and depositions pertaining to city business, keeping meeting minutes, recording, publishing, and certifying city ordinances, and additional duties as prescribed by ordinance or other state laws, including the administration of elections as a neutral elections official under the Political Reform Act and ensuring compliance with state transparency laws such as the Ralph M. Brown Act (Brown Act) and the Public Records Act (PRA); and

**WHEREAS,** among other requirements, the city clerk must ensure compliance with state open meeting laws and ensure that legislative actions, including, but not limited to, the preparation of legislative agendas, publication of meeting notices, and posting of agendas, abide by the Brown Act; and

**WHEREAS,** the city clerk is also entrusted with maintaining City of Fairfield (City) records, including the retention of records, the organization of the City's records, and their indexing and retrieval, as well as responding to requests for City records under the PRA; and

**WHEREAS,** a city clerk is either elected by a majority of voters or appointed; and

**WHEREAS,** the position of the Fairfield City Clerk is currently an elected office; and

**WHEREAS,** the duties, responsibilities and requirements of a city clerk have evolved and increasingly demand extensive technical knowledge and experience in election law, records management and retention requirements, public transparency laws, digital archiving and cybersecurity, technology systems, and compliance with other State laws, as well as professional training, education, and certification; and

**WHEREAS,** under State law, elected city clerk candidates are only required to be adult residents and registered voters of the City, and are not required to possess specific education, certification, public agency experience, records management training, election administration experience, or legal compliance expertise; and

Docusign Envelope ID: FDB88268-0939-87AA-8156-10568B71DDFF



**WHEREAS,** the city clerk liaises between the general public and City Council, and provides related municipal services and information regarding the operations and legislative history of the City upon which the council, all City departments, and the public rely; and

**WHEREAS,** since the role of the city clerk is integral to day-to-day City operations, the City requires a candidate that has the professional education or training and knowledge in addition to the technical skills necessary to understand and administer the wide range of laws and responsibilities that are required of the position; and

**WHEREAS,** a 2022 survey conducted by City of Carlsbad staff found that of the 482 California cities at that time, 383, or 79.5% of cities, now have an appointed city clerk and only 99 cities, or 20.5%, have an elected city clerk; and

**WHEREAS,** the percentage of elected city clerks in California has continued to decline and has trended in favor of appointed positions; and

**WHEREAS,** an appointed city clerk may be held accountable through professional performance standards, regular evaluation, and the same administrative expectations applied to other professional City staff, while the elected city clerk remains directly accountable to Fairfield voters for the effective operation of City government; and

**WHEREAS,** the council desires to submit to the voters of the City at the General Municipal Election to be held on November 3, 2026, a measure relating to whether the Office of City Clerk shall be appointive; and

**WHEREAS,** if the measure is adopted, the council may delegate to the city manager the appointment authority for the position to ensure the hiring of a professional with the skills and expertise needed to fulfill the increasingly complex and technical duties of a city clerk.

**NOW, THEREFORE, THE COUNCIL OF THE CITY OF FAIRFIELD HEREBY RESOLVES:**

Section 1. The facts set forth in the recitals of this resolution are true and correct and establish the factual basis for the council's adoption of this resolution.

Section 2. On June 16, 2026, the Fairfield City Council called a General Municipal Election to be held in the City on November 3, 2026 (General Municipal Election) and requested that the Solano County Board of Supervisors consolidate said election with the Statewide General Election to be held on the same date. Pursuant to California Elections Code Sections 9222 and 10201, the City Council hereby orders that at said General Municipal Election, a ballot measure to convert the Office of the City Clerk to an appointive position be submitted to the voters for consideration. The full text of the proposed ordinance to make the Office of the City Clerk appointive is attached

Docusign Envelope ID: FDB88268-0939-87AA-8156-10568B71DDFF



to this Resolution as Exhibit A and incorporated herein by reference. The measure to be submitted to the voters shall appear and be printed on the ballot as follows:

| City of Fairfield Appointive City Clerk Measure | |
|---|---|
| Shall the Office of City Clerk be appointive? | YES |
| | NO |

Section 3. The proposed ordinance shall only take effect if at least a majority of those voting on the question vote in favor of it at the General Municipal Election.

Section 4. The city attorney is hereby directed to prepare an impartial analysis of the measure pursuant to Elections Code Section 9280.

Section 5. The council directs that arguments for and against the measure may be filed in accordance with applicable law, and that all members of the council are authorized to file the argument in favor of the measure to be voted on at such General Municipal Election pursuant to Elections Code Section 9282. Rebuttal arguments shall not be accepted in connection with this measure.

Section 6. In all particulars not recited in this resolution, the election shall be held and conducted as provided by law for holding municipal elections. All persons qualified and registered to vote in the City of Fairfield as of the date of such election shall be entitled to vote. The ballots to be used at the election shall be in the form and content as required by State law.

Section 7. Notice of the time and place of holding the General Municipal Election is hereby given and the city clerk is authorized, instructed, and directed to give further or additional notice of the election, in the time, form and manner as required by law, and to publish a synopsis of the measure as required by law.

Section 8. The city clerk is hereby directed to submit a complete certified copy of this resolution to the Solano County Registrar of Voters Office and to the Solano County Board of Supervisors.

Section 9. The mayor shall sign and the city clerk shall certify the passage and adoption of this resolution.

Docusign Envelope ID: FDB88268-0939-87AA-8156-10568B71DDFF



**PASSED AND ADOPTED** this 7th day of July 2026, by the following vote:

| | | |
|---|---|---|
| AYES: | MEMBERS: | VACCARO/BERTANI/CARR/PANDURO/SANDHU/TONNESEN/WILLIAMS |
| NOES: | MEMBERS: | NONE |
| ABSENT: | MEMBERS: | NONE |
| ABSTAIN: | MEMBERS: | NONE |

[redacted]
MAYOR

ATTEST:

[redacted]
CITY CLERK